and hence, it cannot be regarded as a universal rule. A post-Constitution law which violates the fundament right conferred by Article 19 will be effective as regards to non-citizens because fundamental rights are not conferred on them. On the other hand, such a law will become a nullity or void only against citizens because fundamental rights are available to them.

Accordingly, the Bombay Labour Welfare Funct Act (1953) was held to be valid and operative with regard to non-citizens.

Later, the Supreme Court applied the doctrine of eclipse to a post-Constitution law even against citizens in *Dulare Lodh* case[16] (1984).

DOCTRINE OF TERRITORIAL NEXUS

1. Meaning of the Doctrine

The doctrine of territorial nexus is rated to Article 245 which deals with the extent of laws made by the Parliament and the State Legislatures. It contains the following provisions:

1. The Parliament is empowered to make laws for the whole or any part of the territory of India. In addition, it can also make "extra-territorial legislation". This implies that the Parliamentary laws are applicable not only to the persons and property within the territory of India but also to the Indian citizens and their property in any part of the world.

2. A State Legislature is empowered to make laws for the whole or any part of the state. Unlike the Parliament, a State Legislature cannot make "extra-territorial legislation".

From the above, it is clear that the laws made by a State Legislature are not applicable outside the state. However, there is one exception to this general rule i.e., an extra-territorial legislation made by a State Legislature is valid when there is a sufficient nexus between the state and the object. This is known as the doctrine of territorial nexus.

According to the doctrine of territorial nexus, the object to which a state law applies need not be physically located within the state territory, but it is required that there should be a sufficient nexus or connection between the state and the subject-matter of the law. This means that a state law having extra-territorial operation is held valid by applying the doctrine of territorial nexus.

2. Formulation of the Doctrine

In the pre-Constitution period, there were three important cases in which the doctrine of territorial nexus was applied. The Federal Court applied the doctrine in *Raleigh* case[17] (1944) and *Wadia* case[18] (1949) while the Privy Council applied it in *Wallace* case[19] (1948). These three cases were related to the income-tax law.

In the post-Constitution period, the Supreme Court applied the doctrine in *R.M.D. Chamarbaugwalla* case[20] (1957). This case was related to the law imposing a tax on gambling. In this case, the court held that if there is a sufficient territorial nexus between the person sought to be taxed and the state seeking to tax him, the taxing law is upheld. It also clarified that the sufficiency of territorial nexus involves a consideration of the following two important elements:

1. The nexus must be real and not illusory; and